

10 February 2020

**Car Park Site, Naval Row, Poplar**

in the London Borough of Tower Hamlets

planning application no. PA/19/02292/A1

**Strategic planning application stage 1 referral**

Town & Country Planning Act 1990 (as amended); Greater London Authority Acts 1999 and 2007; Town & Country Planning (Mayor of London) Order 2008

**The proposal**

342-room, part-24 part-17 storey, apart-hotel (C1 Use Class), eight workspace units (B1 Use Class), new bus loop/stand, new youth play area, and public realm works

**The applicant**

The applicants are **Criterion Capital**, and the architects are **Collado Collins Architects**

**Strategic issues**

**Principle of development:** The principle of a 342 bedroom apart-hotel within an opportunity area is supported by strategic planning policy. Further engagement with neighbouring stakeholders is required to demonstrate that the proposal would not compromise the delivery of residential units or floorspace within the consented Blackwall Reach masterplan. (Paragraphs 17-25)

**Urban design:** The design responds well to the local context and proposes a high-quality redevelopment. The proposal would not harm the significance of nearby heritage assets. (Paragraphs 26-41)

**Sustainable development:** The Energy Hierarchy has been followed as required in London Plan policy 5.2 and policy SI3 of the Mayor's intend to publish London Plan. The applicant should provide further detail on the proposed ASHP and PV provision and connection to nearby heat networks. (Paragraphs 42-45)

**Transport:** A suitable mechanism is required to ensure the bus stand is adequately re-provided across all phases. Access to DLR infrastructure and the safe and efficient operation of the railway must be maintained. An additional short-stay cycle space for the apart-hotel is required and cycle parking for the commercial units should be provided. Healthy Streets improvements should be secured in support of this application. (Paragraphs 46-66)

**Recommendation**

That Tower Hamlets Council be advised that while the scheme is generally supported in strategic planning terms, the application does not fully comply with the London Plan, for the reasons set out in paragraph 70 of this report.

## Context

1 On 13 November 2019 the Mayor of London received documents from Tower Hamlets Council notifying him of a planning application of potential strategic importance to develop the above site for the above uses. Under the provisions of The Town & Country Planning (Mayor of London) Order 2008 the Mayor must provide the Council with a statement setting out whether he considers that the application complies with the London Plan, and his reasons for taking that view. The Mayor may also provide other comments. This report sets out information for the Mayor's use in deciding what decision to make.

2 The application is referable under the following Categories of the Schedule to the Order 2008:

- 1B 'Development (other than development which only comprises the provision of houses, flats or houses and flats) which comprises or includes the erection of a building or buildings outside Central London and with a total floorspace of more than 15,000 square metres
- 1C.1(c) "*Development which comprises or includes the erection of a building more than 30 metres high and is outside the City of London.*"

3 Once Tower Hamlets Council has resolved to determine the application, it is required to refer it back to the Mayor for his decision as to whether to direct refusal; take it over for his own determination; or allow the Council to determine it itself.

4 The Mayor of London's statement on this case will be made available on the GLA website [www.london.gov.uk](http://www.london.gov.uk).

## Site description

5 The site is a 0.72 hectare block of land accessed off Scouler Street, which is off Naval Row in the London Borough of Tower Hamlets. The site sits directly to the north of Aspen Way. The DLR concrete viaduct runs directly above the southern portion of the site running east-west. Scouler Street bounds the site to the north and Prestage Way to the west.

6 The A13 East India Dock Road is 350 metres to the north of the site, the A12 / A102 Blackwall Tunnel Approach Road is 150 metres to the north of the site, the tunnel itself runs north – south under the centre of the site. The A1261, A13 and A12/A102 all form part of the Transport for London Road Network (TLRN).

7 Blackwall and East India Dock Road Docklands Light Railway (DLR) stations are located approximately 100 metres south west and 300 metres east of the site respectively. Both serve the Bank to Woolwich Arsenal and Tower Gateway to Beckton branches.

8 Stops and stands for the bus route 15 are located directly to the west of the site on Ditchburn Street, adjacent to Blackwall DLR station. Further bus routes (D6, D7, D8, 108 and 115) are also accessible within walking distance (640 metres) of the site. Hence, the site records a PTAL (public transport access level) of 4 on scale of 0 to 6b, where 6b is highest.

9 Cycle Superhighway 3 (Barking to Tower Gateway) runs directly to the north of the site along Naval Row and the nearest Santander Cycle Hire docking station is approximately 150 metres north of the site at the junction of Prestage Way and Poplar High Street.

10 The site is located in the Lower Lea Valley Opportunity Area and the Isle of Dogs and South Poplar Opportunity Area.

11 The site falls within the boundary of the Blackwall Reach Masterplan, which is subject to outline planning permission for a major residential-led mixed use development in the wider site, bounded by East India Dock Road, Cotton Street, Aspen Way, Quidley Street and Robin Hood Lane, comprising up to 1,575 new homes, and up to 2,610 sq.m of commercial floorspace (LPA ref: PA/12/00001 & GLA ref:2727). The site is within the land identified for Phase 4 of the granted outline permission. The Blackwall Reach outline permission has been implemented with phase 2 currently under construction.

## **Details of the proposal**

12 The scheme proposes redevelopment of the site to provide a 342 bedroom apart hotel in a part-24 part-17 storey building, together with 8 commercial units within containers, public realm improvement works, creation of a new bus loop/stand and youth play area. The main building would include guest facilities at ground and mezzanine levels, reception, function rooms, communal workspace, exhibition space and café facilities. Bedrooms are located on the first– 23rd floor.

## **Case history**

13 A series of pre-planning application meetings have been held between the applicant, Tower Hamlets Council and the Greater London Authority on the above proposal at the above site. An initial meeting was held with the GLA on 26 July 2018, with a follow up meeting held on 28 May 2019. GLA officers concluded that the development of the site independent of the Blackwall Reach outline masterplan could be supported subject to a collaborative position with neighbouring landowners and stakeholders. Given the above, it was advised that a sequential test and town centre impact assessment should be undertaken. Further information was required relating to the hotel use, urban design, and transport, prior to the submission of any application.

## **Strategic planning issues and relevant policies and guidance**

14 For the purposes of Section 38(6) of the Planning and Compulsory Purchase Act 2004, the development plan in force for the area is the Tower Hamlets Local Plan 2031: Managing Growth and Sharing Benefits and the 2016 London Plan (Consolidated with Alterations since 2011).

15 The following are relevant material considerations:

- The revised National Planning Policy Framework;
- National Planning Practice Guidance; and
- The London Plan intend to publish version (December 2019).

- Lower Lea Valley Opportunity Area Planning Framework (July 2007)
- Isle of Dogs and South Poplar Opportunity Area Planning Framework (October 2019)

16 The relevant strategic issues and corresponding policies are as follows:

- Opportunity Areas *London Plan;*
- Visitor Accommodation *London Plan;*
- Urban design *London Plan; Character and Context SPG;*
- Inclusive access *London Plan; Accessible London SPG;*
- Sustainable development *London Plan; Sustainable Design and Construction SPG; Mayor's Environment Strategy;*
- Transport *London Plan; the Mayor's Transport Strategy.*

## Principle of development

### Visitor Accommodation

17 London Plan Policy 4.5 'London's Visitor Infrastructure' seeks to achieve a target of 40,000 net additional hotel rooms by 2036, and where located beyond the Central Activities Zone, should be located in town centres and Opportunity Areas with good public transport access. Policy E10 of the Intend to Publish London Plan also supports such accommodation, and paragraph 6.10.2 identifies that London will need to build an additional 58,000 bedrooms of serviced accommodation by 2041.

18 The site is located within the Isle of Dogs and South Poplar Opportunity Area and Lower Lea Valley Opportunity Area and benefits from excellent public transport accessibility. As such, this is an appropriate location for visitor accommodation. The additional rooms would make a positive contribution towards the requirements of London Plan Policy 4.5 and Policy E10 of the intend to publish London Plan, and on this basis the proposal to redevelop the site to provide a 342 bed apart-hotel is supported in principle.

### Commercial uses

19 London Plan Policy 4.2 'Offices', and Policy E1 of the Intend to Publish London Plan support increases in the stock of offices of different sizes where there is evidence of demand. The proposal seeks to introduce new workspaces within 8 containers on the southern edge of the site. The Isle of Dogs and South Poplar Opportunity Area Planning Framework identifies the site within the Poplar High Street neighbourhood centre, where the development of workspace for SME and start-up businesses is strongly supported. Accordingly, the principle of a new additional commercial workspace as part of the redevelopment of the site is supported.

### Relationship with Blackwall Reach Masterplan

20 As noted above, the site is within the boundary of the extant permission for the wider Blackwall Reach Masterplan area. The applicant seeks to bring the proposed development forward independently of the Blackwall Reach outline permission.

21 The proposed development would displace the proposed Blocks P and Q of the Blackwall Reach Masterplan which are anticipated to deliver 73 homes within the outline consent. However, the applicant has stated that the masterplan can deliver the 1,575 homes consented without Blocks P and Q, through optimisation of the remaining blocks within Phase 4.

22 Having regard to the evolving context of the site and the progression of planning policy since the outline consent was granted in 2012, with the Isle of Dogs and South Poplar Opportunity Area Planning Framework and the Tower Hamlets Local Plan adopted in October and December 2019 respectively, establishing Blackwall as a location suitable for tall buildings and intensification, GLA officers broadly support the principle of 'slotting out' the proposal site from the masterplan and accommodating the consented housing elsewhere within the masterplan area through well-considered intensification of other plots. This could come forward as part of a comprehensive review aimed at optimising the potential of the Blackwall Reach Masterplan.

23 Whilst GLA officers note that that the proposals may prevent Phase 4 of the Blackwall Reach Masterplan being implemented in line with the extant consent, the land within the current application site is no longer in the control of the applicant for the outline permission following its deletion from the Compulsory Purchase Order associated with the masterplan by the Secretary of State.

24 It is further noted that the proposal would enable the delivery of elements of the wider masterplan through supporting the delivery of a bus loop, temporarily re-providing the existing bus stand within the site, public realm improvement works and the delivery of youth play space, serving residents within the masterplan area as consented within the outline consent.

25 Given the above, the development of the proposal site independent of the Blackwall Reach masterplan is supported in principle. However, notwithstanding the above, the applicant is strongly encouraged to engage with neighbouring stakeholders to establish greater certainty that the delivery of the consented quantum of housing could still be delivered, and further information on this should be provided before the application is referred back to the Mayor at Stage 2.

## **Urban design**

26 The design principles of chapter seven in the London Plan and chapter three of the Intend to Publish London Plan outline that all developments should achieve a high standard of design which responds to local character, enhances the public realm and provides architecture of the highest quality. In particular, Policy 7.5 of the London Plan and Policies D1 & D2 of the Intend to Publish London Plan require architecture to make a positive contribution to a coherent public realm, streetscape and wider cityscape, incorporating the highest quality materials and design appropriate to the surrounding context

### Design and Layout

27 The layout principles of the proposed scheme are broadly supported. The introduction of a linear zone of public realm underneath the DLR and running alongside Aspen Way enables the site to work within the significant spatial and

access constraints of the site. The ground floor layout provides good levels of active frontage and definition along the southern edge facing onto the DLR underpass and new public realm. The commercial activity along this frontage provides a welcome contribution to the public realm and marks the entrance to the ground floor space. GLA officers are however concerned about the lack of active frontage onto the Scouler Street frontage. The majority of the ground floor onto Scouler Street would comprise of BOH entrances and cycle stores. Scouler Street is intended to provide a pedestrian route through the masterplan site. This relationship between servicing of the aparthotel and residential, within the neighbouring masterplan site, requires careful management. The applicant should consider how the layout can be amended to reduce the extent of inactive frontage onto Scouler Street or further clarity on the measures to mitigate the extent of inactive frontage to ensure that the east-west pedestrian route becomes an attractive pedestrian environment.

### Massing and architecture

28 London Plan policies 7.1 and 7.4 and policies D1 and D2 of the the Mayor's intend to publish London Plan require development to have regard to the form, function and structure of an area and the scale, mass and orientation of surrounding buildings. Whilst the proposed part-17 part 24 storey tower represents a step change in height from the outline consent, the site is within the Blackwall Tall Buildings Zone, which is identified as an area suitable for tall buildings. The proposed heights would be consistent with the envisaged scale of the Blackwall Heights towers and the building would step down from the 37 and 31 storeys consented on Blackwall Reach. As such, there is precedent for this scale within the wider townscape context. GLA officers are of the view that this represents a sound approach in terms of optimising the development potential of the site, given the notable constraints and responding to the nature of the surrounding emerging context.

29 The east and west frontages of the tower present elegant building proportions on the approach from the east and west however the broad north and south frontages risk creating a 'slab like' and imposing form. The applicant seeks to address this through the architectural detailing which introduces an ordered grid structure with strong vertical emphasis, distinctive and contrasting coloured extruded aluminium framing fins and extensive glazing. The contrasting façade treatment creates distinction between the two volumes of the tower and visual interest through the differentiation from the architectural environment of Blackwall and is supported. The detailing and build quality will however be critical to achieving the highest possible standard of architecture and the Council is encouraged to secure key details to ensure this is achieved.

### Fire safety

30 In line with draft London Plan policy D11, development proposals must achieve the highest standards of fire safety and ensure that they: are designed to incorporate appropriate features which reduce the risk to life in the event of a fire; are constructed in an appropriate way to minimise the risk of fire spread; provide suitable and convenient means of escape for all building users; adopt a robust strategy for evacuation which all building users can have confidence in and provide suitable access and equipment for firefighting which is appropriate for the size and use of the development.

31 The applicant is as such required to submit a Fire Statement by a third party suitably qualified assessor. The statement should detail how the development proposal will function in terms of: the building's construction; the means of escape; access for fire service personnel and equipment, and the ongoing maintenance and monitoring of these how provision will be made within the site to enable fire appliances to gain access to the building. The Fire Statement should be submitted prior to determination and suitably secured by condition.

#### Inclusive access

32 London Plan Policy 4.5 requires that hotel developments should ensure that at least 10% of bedrooms are wheelchair accessible. Policy E10 of the Intend to Publish London Plan requires that 10% of new bedrooms are wheelchair accessible (in accordance with British Standard BS8300-2:2018) or 15% of new bedrooms are accessible rooms in accordance with the requirements set out in British Standard BS8300-2:2018. The applicant should confirm what approach will be taken to ensure an appropriate amount of accessible serviced accommodation is provided. The borough should seek to secure this provision by condition.

#### Agent of change

33 In line with Policy D13 of the Intend to Publish London Plan, the proposed measures to mitigate against noise and/or vibration emanating from the adjoining railway line should be secured by condition.

### **Heritage**

34 The Planning (Listed Buildings and Conservation Areas) Act 1990 sets out the statutory duties for dealing with heritage assets in planning decisions. In relation to listed buildings, all planning decisions should 'should have special regard to the desirability of preserving the building or its setting or any features of special architectural or historic interest which it possesses'.

35 The NPPF states that when considering the impact of the proposal on the significance of the designated heritage asset, great weight should be given to the asset's conservation. Significance can be harmed or lost through alteration or destruction of the heritage asset or development within its setting. Significance is the value of the heritage asset because of its heritage interest, which may be archaeological, architectural, artistic or historic, and may derive from a heritage asset's physical presence or its setting. Where a proposed development will lead to 'substantial harm' to or total loss of the significance of a designated heritage asset, local planning authorities should refuse consent, unless it can be demonstrated that the substantial harm or loss is necessary to achieve substantial public benefits that outweigh that harm or loss. Where a development will lead to 'less than substantial harm', the harm should be weighed against the public benefits of the proposal, including securing its optimum viable use.

36 London Plan Policy 7.8, states that development affecting heritage assets should conserve their significance by being sympathetic to their form, scale, materials and architectural detail. Policy HC1 of the Intend to Publish London Plan further specifies that the cumulative impacts from incremental change from development on heritage

assets and their setting should be actively managed and that development proposals should avoid harm.

37 The site does not lie within a conservation area or contain any Listed Buildings or Locally Listed Buildings. A number of Listed structures and Conservation Areas lie within a 1km radius of the site. The nearest heritage assets are Naval Row, adjoining the application site to the north and the listed structures within comprising the East India Dock Pumping Station (grade II) lying immediately to the north of the site; Embankment and East India Dock Boundary Walls, the Northern portal and parapet to Blackwall Tunnel (grade II) to the north-west of the site and East India Dock House (Grade II\*), to the north beyond the above mentioned listed walls. To the south of the site is the Dry Dock at Blackwall Engineering, Northern Ventilation Shaft to the Blackwall Tunnel (grade II), the original eastern part of Poplar Dock and Coldharbour Conservation Area. Further to the northwest is the All Saints Poplar Conservation Area, St Frideswide's Conservation Area, Balfron Tower Conservation Area, Lansbury Conservation Area, and St Matthias Church Conservation Area with a number of Grade II and II\* Listed buildings therein most prominently, St Matthias Church (Grade II\*), All Saints Church and Poplar Technical College (Grade II).

38 The proposed development would appear prominently in views from within and into the Naval Row Conservation Area and, in the background of the Grade II East India Pumping Station, the Embankment and East India Dock Boundary Walls and the Northern portal and parapet to Blackwall Tunnel (grade II) to the north of the site. The site development would also be prominent in views looking north from within the setting of Poplar Dock (grade II). The development would also be visible in limited views from within the St Matthias and Coldharbour Conservation Areas and in views taking in the Grade II\* Listed East India Dock House, Dry Dock at Blackwall Engineering and the Northern Ventilation Shaft to the Blackwall Tunnel.

39 With regard to the impact of the development on Naval Row Conservation Area and the listed buildings therein, i.e. the listed Northern portal and parapet to Blackwall and the listed Poplar Dock, the supporting Heritage, Townscape and Visual Impact Assessment has considered these matters and concludes that, having regard to the existing and emerging context, whereby modern tall buildings are an established feature of the townscape, and the high quality architecture of the proposed scheme, the development would not have a harmful impact on the significance of the nearby identified heritage assets. GLA officers concur with the conclusion of the applicant's assessment.

40 With regard to St Matthias and Coldharbour Conservation Areas, the Grade II\* Listed East India Dock House, the Dry Dock at Blackwall Engineering and the Northern Ventilation Shaft to the Blackwall Tunnel, whilst the development would be visible from these heritage assets, it would appear at a scale consistent with the emerging context in the surrounding built environment and would be of a scale and prominence relative to this context. As such, it is not considered that the new development would harm the setting or significance of the above mentioned heritage assets.

41 Having regard to the statutory duty in respect of listed buildings in the Planning (Listed Buildings and Conservation Areas) Act 1990, and the relevant paragraphs in the NPPF in relation to listed buildings and conservation areas, GLA officers consider that the proposed buildings respond to the changing context of the area, and would



bring about substantial improvements in the quality of the existing environment by introducing public realm improvements and youth play facilities. There would be no harm to the significance of heritage assets by reason of larger buildings becoming visible in the backdrop to nearby listed buildings and conservation areas. The proposals therefore accord with Policy 7.8 of the London Plan and Policy HC1 of the Mayor's intend to publish London Plan.

## **Climate Change**

### **Energy**

42 In accordance with the principles of London Plan Policy 5.2 and Policy SI2 of the Intend to Publish London Plan, the applicant has submitted an energy strategy, setting out how the development proposes to reduce carbon dioxide emissions. The strategy comprises a range of passive design features and demand reduction measures. The development would achieve a 3% energy reduction through energy efficiency measures which falls short of the Intend to Publish London Plan policy requirement of 15%. The applicant should provide further passive measures to reduce the actual cooling demand and as a minimum ensure that it is lower than the notional cooling demand. A Dynamic Overheating Analysis to assess the overheating risk on any naturally ventilated spaces should be carried out.

43 The applicant has identified a district heating network within the vicinity of the development and central boiler system within the Blackwall Reach masterplan site. If feasible, connection to the network should be prioritised. The applicant should ensure that the heating strategy selected enables the provision of the majority of the development's heat via a wet heating system. It is unclear whether this is the case, and further detail should be provided. Drawings demonstrating how the site is to be future-proofed for a connection to a district heating network should be provided; these should include space provision for heat exchangers in the plant room, isolation valves, safe-guarded pipe route to the site boundary etc.

44 No photovoltaic (PV) panels are proposed. A detailed roof layout should be provided demonstrating that the roof's potential for a PV installation has been maximised.

45 The applicant proposes a centralised gas fired CHP hot water system with a single energy centre. Heating and cooling is provided by a heat pump system. Further information on the heat pumps are required in order to confirm conformity with London Plan policy requirements. Whilst the principles of the energy strategy are supported, the applicant must explore the potential for additional measures to deliver further carbon dioxide reductions.

## **Transport**

### **Highway Layout and bus infrastructure**

46 The relocation of the bus stands adjacent to Blackwall DLR station has already been agreed as part of the planning permission for the Blackwall Reach development. The framework of controls attached to that permission must be re-

secured in any subsequent permission to ensure that adequate bus standing is in place at all times to protect bus operations in this part of London.

47 An interim layout with buses standing parallel to the DLR viaduct (Phase 1) has been presented, to be followed by a permanent arrangement (Phase 2) following the re-alignment of Prestage Way. Accordingly any planning permission must include a suitable mechanism ensuring that each phase of bus standing, with the necessary leases and driver facilities, are delivered in agreement with TfL and the Council prior to removal of the facilities in the previous phase. Vehicle tracking for the phase 1 interim bus layout is required to demonstrate adequate space is being provided for all road users.

48 The relocation of the bus stands is likely to generate additional bus mileage. The applicant should discuss with TfL and the Council to establish how this additional cost can be mitigated.

#### Blackwall Tunnel and Aspen Way

49 The Blackwall Tunnel runs directly below the site and the necessary infrastructure protection conditions in order to protect the safe on-going operation of the tunnel will need to be attached to any permission. A 'build over agreement' will also be required, this should be progressed prior to determination.

50 The use of moveable structures for the proposed commercial units is welcomed to ensure access for asset inspection and maintenance along the boundary with Aspen Way.

#### DLR Infrastructure Protection

51 Given the proximity to the DLR, the demolition and construction methodologies will need to be reviewed and agreed and no proposal should restrict DLR's access to its infrastructure or pose a risk to the safe and efficient operation of the railway. An Asset Protection Agreement will need to be entered into, and details of the required conditions in relation to this will be issued to the Council directly.

52 In addition to this, there are a number of detailed matters that need to be addressed in relation to protecting the integrity of the DLR. These will be provided to the Council and must be addressed prior to the determination of the planning application.

#### Transport Assessment

53 The Transport Assessment (TA) provided has followed recently published guidance on adopting a Healthy Streets approach, which is welcomed. It is accepted that based on the multi-modal trip generation the additional trips generated by the scheme are unlikely to have an adverse impact upon the strategic transport network.

#### Healthy Streets and Vision Zero

54 As identified within the Active Travel Zone (ATZ) assessment, the junction of Prestage Way, Naval Row and Poplar High Street performed poorly based on the

interaction between HGVs, pedestrians and cyclists. The applicant should improve design proposals at this location in consultation with TfL. Recommendations derived from the ATZ assessment to provide a formal pedestrian crossing point along Polar High Street before the junction of Naval Row and Prestage Way are noted.

55 Based on the above, a number of Healthy Streets improvements should be secured in support of this application in accordance with Policy T2 of the Intend to Publish London Plan and the Mayor's commitment to Vision Zero. The applicant should consult TfL on these designs as they are developed in order to ensure they are compatible with the proposed bus re-routing loop.

56 Pedestrian and cyclist wayfinding from the site to the pedestrian subway beyond Blackwall DLR station should be added to public realm strategy plans to ensure this key pedestrian and cyclist route to the south of Aspen Way is maintained.

### Travel plan

57 The framework travel plan submitted has followed TfL guidance which is welcomed. However, measures encouraging active travel should be provided for both apart-hotel employees and guests to ensure the scheme as a whole shows commitment to achieving the Mayor's Strategic Mode Share Target for 90% of all trips to be made by foot, cycle or public transport by 2041 within Inner London. The final Travel Plan should be secured and monitored via S106 agreement.

### Cycle Parking

58 The proposals currently include 17 long-stay and 6 short-stay cycle spaces for the apart-hotel use. An additional short-stay space is required in order to conform to the draft London Plan minimum standards.

59 Cycle parking for the commercial units should be provided in line with Policy T5 of the Intend to Publish London Plan noting that the location of this provision must not interfere with access to the DLR/ DLR infrastructure protection and access to the boundary wall along Aspen Way.

60 The submitted plans do not yet provide sufficient details regarding cycle parking provision to assess its merits against the London Cycle Design Standards (LCDS). Clarity is required regarding the type of cycle stands proposed and associated dimensions should be indicated within a secured Parking Design and Management Plan. A minimum of 5% of cycle parking provision should cater for larger cycles, including adapted cycles for disabled people.

61 Given that Scouler Street will be used for delivery and servicing alongside access to long stay cycle parking, further details on the layout and management of this arrangement should be provided to ensure the potential for user conflict is minimised.

### Car Parking

62 The proposals for a car free scheme other than four blue badge parking spaces accords with Policy T6 of the Intend to Publish London Plan.

63 Swept path analysis should be provided to demonstrate how vehicles using the blue badge parking can safely enter and egress the spaces safely without conflicting with the servicing and cyclist access point at the Quixley Street and Scouler Street junction.

#### Delivery and Servicing and Construction Logistics

64 The applicant should confirm whether there will be two or three taxi bays provided for drop-off and pick-up.

65 Having reviewed the swept path analysis drawings, servicing arrangements for the interim and final solutions are acceptable with the creation of a 'through route' along a new link road between Quixley Street and Prestage Way minimising impact upon bus movements.

66 The full Construction Logistics Plan (CLP) will need to be signed off by both TfL (including DLR) and the Council prior to commencement. Specific construction methodologies in relation to DLR infrastructure will be required as part of this submission.

### **Local planning authority's position**

67 Tower Hamlets Council officers are currently assessing the application.

### **Legal considerations**

68 Under the arrangements set out in Article 4 of the Town and Country Planning (Mayor of London) Order 2008 the Mayor is required to provide the local planning authority with a statement setting out whether he considers that the application complies with the London Plan, and his reasons for taking that view. Unless notified otherwise by the Mayor, the Council must consult the Mayor again under Article 5 of the Order if it subsequently resolves to make a draft decision on the application, in order that the Mayor may decide whether to allow the draft decision to proceed unchanged, or direct the Council under Article 6 of the Order to refuse the application, or issue a direction under Article 7 of the Order that he is to act as the local planning authority for the purpose of determining the application and any connected application. There is no obligation at this present stage for the Mayor to indicate his intentions regarding a possible direction, and no such decision should be inferred from the Mayor's statement and comments.

### **Financial considerations**

69 There are no financial considerations at this stage.

## Conclusion

70 London Plan policies on opportunity areas, visitor infrastructure, employment, design, heritage, access, energy, and transport are relevant to this application. The application is broadly supported in strategic planning terms, but the following matters should be addressed to ensure full compliance with the London Plan and the Mayor's intend to publish London Plan:

- **Principle of development:** The principle of a 342 bedroom apart-hotel within an opportunity area location is supported by strategic planning policy. Further engagement with neighbouring stakeholders is required to demonstrate that the proposal would not compromise the delivery of residential units or floorspace within the consented Blackwall Reach masterplan.
- **Urban design and heritage:** The design responds well to the local context and proposes a high-quality redevelopment. The proposal would not harm the significance of nearby heritage assets.
- **Inclusive access:** The applicant should confirm what approach will be taken to ensure an appropriate amount of accessible serviced accommodation is provided.
- **Sustainable development:** The Energy Hierarchy has been followed as required in London Plan policy 5.2 and policy SI3 of the Mayor's intend to publish London Plan. The applicant should provide further detail on the proposed ASHP and PV provision and connection to nearby heat networks.
- **Transport:** A suitable mechanism is required to ensure the bus standing is adequately re-provided across all phases. Access to DLR infrastructure and the safe and efficient operation of the railway must be maintained. An additional short-stay cycle space for the apart-hotel is required and cycle parking for the commercial units should be provided. Healthy Streets improvements should be secured in support of this application.

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for further information, contact GLA Planning Unit (Development Management Team):

**Debbie Jackson, Director, Built Environment**

020 7983 5000 email [Debbie.Jackson@london.gov.uk](mailto:Debbie.Jackson@london.gov.uk)

**John Finlayson, Head of Development Management**

020 7084 2632 email [John.Finlayson@london.gov.uk](mailto:John.Finlayson@london.gov.uk)

**Allison Flight, Deputy Head of Development Management**

078 4004 6318 email [Alison.Flight@london.gov.uk](mailto:Alison.Flight@london.gov.uk)

**Katherine Wood, Team Leader – Development Management**

020 7983 5743 email [katherine.wood@london.gov.uk](mailto:katherine.wood@london.gov.uk)

**Toyin Omodara, Senior Strategic Planner**

020 8039 1272 email [Toyin.Omodara@london.gov.uk](mailto:Toyin.Omodara@london.gov.uk)